

6	Randall vs Morena 2021-01193717	Motion to Seal Defendant Dr. Farhad Contractor’s Motion to Seal is DENIED. Defendant has complied with the procedural requirements for sealing under <i>California Rules of Court</i>, rule 2.551. <u>Merits</u> To grant a motion to seal, the court must expressly find that: a. an overriding interest exists that overcomes the right of public access to the record; b. the overriding interest supports sealing the records; c. a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; d. the proposed sealing is narrowly tailored; and e. no less restrictive means exist to achieve the overriding interest. <i>Cal. Rules Ct.</i>, Rule 2.550(d); <i>McGuan v. Endovascular Technologies, Inc.</i> (2010) 182 Cal.App.4th 974, 988. These findings embody constitutional requirements for a request to seal court records, protecting the First Amendment right of public access to civil trials. <i>NBC Subsidiary (KNBC–TV), Inc. v. Superior Court</i> (1999) 20 Cal.4th 1178, 1217–1218; <i>Huffy Corp. v. Superior Court</i> (2003) 112 Cal.App.4th 97, 104; <i>People v. Jackson</i> (2005) 128 Cal.App.4th 1009, 1026–1027 [finding that in determining whether to seal records, courts must weigh constitutional requirements for disclosure against such factors as privacy rights]. “The public has a First Amendment right of access to civil litigation documents filed in court and used at trial or submitted as a basis for adjudication. Substantive courtroom proceedings in ordinary civil cases, and the transcripts and records pertaining to these proceedings, are presumptively open.” <i>McNair v. National Collegiate Athletic Assn.</i> (2015) 234 Cal.App.4th 25, 31; <i>In re Marriage of Nicholas</i> (2010) 186 Cal.App.4th 1566, 1575 [strong presumption of public access to court records]. Plaintiff has not proven an overriding interest is his financial, trade secret, and privacy interest in the settlement. Here, the Declaration of Andrew Breidenbach states: “[t]he Good-Faith Settlement Motion
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		contains confidential and private financial information, including settlement amounts and payments. [¶] Plaintiff and Dr. Contractor have expressed an interest in confidentiality as to the settlement payment, which is reflected in the confidentiality provision of their settlement. [¶] The settlement, including the settlement amount, is confidential pursuant to the terms of the settlement agreement” (Breidenbach Decl., ¶¶ 2-4.) The redacted motion (ROA 277) removes the settlement amount as well as the characterization of the amount. The amount of a settlement is not a compelling interest which overrides the right of public access. Plaintiff cites to <i>In re Providian Credit Card Cases</i> (2002) 96 Cal.App.4th 292, 298, fn.3; <i>NBC Subsidiary (KNBC-TV), Inc. v. Superior Court</i> (1999) 20 Cal. 4th 1178, 1222 n.46; and <i>McGuan v. Endovascular Tech., Inc.</i> (2010) 182 Cal.App.4th 974, 988. <i>Providian</i> dealt with internal documents related to scripts for telemarketers and memoranda. <i>NBC</i> dealt with exclusion of the press and public from hearings outside the presence of the jury. <i>McGuan</i> dealt with trade secrets. Defendant has not provided any authority that the amount of settlement creates an overriding interest. In fact, the amount of settlement is one of the main factors to consider regarding whether to grant a motion for good faith settlement. <i>Tech-Bilt v. Woodward-Clyde & Assoc.</i> (1985) 38 Cal.3d 488, 499. Thus, Defendant has failed to prove the privacy or financial interest in the amount he is paying in settlement is an overriding interest. Therefore, the Motion is denied. Moving party to give notice.
7	Jimenez vs Universal Care, Inc. 2024-01378478	Motion to Compel Deposition Plaintiff Griselda Jimenez’s Motion to Compel the Deposition of Defendant Universal Care, Inc.’s PMQ is DENIED as MOOT. The deposition of Defendant’s PMQ was completed on November 4, 2024, prior to the hearing on this motion. Both sides have requested sanctions. Having read the papers submitted by both sides requesting sanctions, the Court declines to award sanctions to either party. Both parties should have compromised and resolved this discovery dispute before bringing it to the Court.